

Introducing the EU AI Act: Summary of the final text

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What is it?

- The largest and most comprehensive AI regulation in the world.
- Applies to organisations bringing AI systems to the EU market, putting them into service, or taking them into use in the EU.
- Introduces rules based on risk categories: **Unacceptable risk, High-risk, Transparency risk, and Systemic risk.**
- Specifies transparency requirements for certain AI systems, such as deepfakes and emotion recognition
- Does not apply to research, development and prototyping, or systems solely used for national security, military or defense purposes. Additionally, providers of free and open-source AI models are exempted from most of the obligations.

How is AI defined?

- **AI Act defines an AI system as** “a machine-based system created to operate with different degrees of autonomy and that learns and adjusts its behaviour over time. Its purpose is to produce outputs, whether explicitly or implicitly intended, such as predictions, content, recommendations, or decisions that can have an impact on physical or virtual environments.”

What AI will be prohibited?

- Subliminal or purposefully manipulative systems
- Systems exploiting vulnerabilities
- Biometric categorisation **deducing sensitive characteristics**
- Social scoring systems
- Individual predictive policing systems
- **Creation/expansion of facial recognition databases** through the untargeted scraping of facial images
- Emotion recognition **at work and schools**
- Real-time remote biometric identification in public spaces, with exceptions for specific uses in **law enforcement**
- Post remote biometric identification systems analysing recorded footage of publicly accessible spaces, with the exception of pre-authorised law enforcement use

Which systems are high-risk?

- AI systems covered by **sectoral product safety regulations**, such as machines and related components, medical devices, vehicles, and toys
- Biometric identification, categorisation, and emotion recognition that do not fall under prohibited practices
- Critical infrastructure management
- Education and vocational training
- Employment and workers management
- Access to **essential services** (e.g. credit scoring, life and health insurance pricing, classification of emergency calls)
- Law enforcement
- Migration, asylum, and border control
- Administration of justice, including influencing elections and voters

What are the requirements for providers of high-risk systems?

- Risk management system
- Data and data governance
- Technical documentation
- Record-keeping
- Transparency and provision of information to deployers
- Human oversight
- Accuracy, robustness and cyber security
- Quality management system
- Post-market monitoring
- Conformity assessment, declaration of conformity, and CE marking
- Access to data and documents for market surveillance
- Administrative obligations (e.g. registration to EU or national database, incident reporting)



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What are the requirements for deployers of high-risk systems?

- Measures to comply with the instructions of use
- Implement and assign human oversight
- Ensure input data relevance and representativeness
- Monitoring and reporting obligations
- Record-keeping
- Workplace deployment notification
- Registration to EU or national database by public authorities or persons acting on their behalf
- Compliance with data protection impact assessment obligations
- Judicial authorisation for exempted use of post-remote biometric identification
- AI decision transparency disclosure
- Fundamental rights impact assessment

What are the requirements for the providers of general-purpose AI (GPAI) systems?

- Model technical documentation, incl. training, testing, and evaluation results
- Transparency to downstream providers integrating GPAI model in their AI system
- Compliance with copyright law
- Documentation and publishing of training data
- Additional requirements for high-impact models with systemic risks (e.g. GPT-4, Gemini), incl. model evaluations, assessment and mitigation of systemic risks, adversarial testing, incident tracking, documenting and reporting, cybersecurity
- AI generated synthetic content must be disclosed and marked, disclosure obligations apply also to deepfakes
- Open-source GPAI models are exempted from most obligations. The open-source exemption does not cover high-impact models with systemic risks, or the requirement to comply with copyright law and publish summaries of training data.

Penalties and enforcement

- **Once in force, the AI Act rules will apply:**
 - after 6 months for prohibited AI practices
 - after 12 months for general-purpose AI models
 - after 24 months for standalone high-risk AI systems listed in Annex II and transparency obligations for providers and deployers of AI systems
 - after 24-36 months for deployers of high-risk systems developed by third parties
 - after 36 months for high-risk systems defined in Annex II (list of Union harmonisation legislation)
- **Penalties**
 - €35 million or up 7% of global annual turnover, whichever is higher, for prohibited AI practices
 - €15 million or up to 3% for violations of the AI Act's obligations
 - €7,5 million or up to 1% for the supply of incorrect information

What happens next?

- The regulation is still subject to a final lawyer-linguist check.
- The law will enter into force 20 days after publication in the Official Journal
- The Commission to launch an **AI Pact** for voluntary commitments on the key obligations
- EU to work with the G7, the OECD, the Council of Europe, the G20 and the UN for global alignment on AI governance



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